

Line 4

Case Name: *J.C. v. Watchtower Bible and Tract Society of New York, Inc., et al.*

Case No.: 22CV407932

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant Watchtower Bible and Tract Society of New York, Inc. (“Watchtower”) moves under Code of Civil Procedure Section 437c for Summary Judgment against Plaintiff J.C. on the ground that Watchtower is entitled to summary judgment as a matter of law because Plaintiff cannot establish all of the elements of her Third Cause of Action for Negligence of Plaintiff’s Second Amended Complaint (“SAC”).¹ Notice of Motion (the “Motion”) at 2:4-11 (filed: Jan. 26, 2026).

The Motion came on for hearing on September 2, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, including all the evidence and separate statements and authorities submitted by each party, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Fact Allegations & Procedural Posture

Plaintiff, J.C.,² brings this Second Amended Complaint (“SAC”) against Defendants Watchtower, West Congregation of Jehovah’s Witnesses, San Jose, CA, Inc. (“West Congregation”), Sean A. Mackey (“Mackey”), and Does 4 through 60 (collectively, “Defendants”) for incidents of childhood sexual assault perpetrated by Mackey against Plaintiff, while Plaintiff was a minor. (SAC, ¶¶ 1-2.)

Watchtower is a religious nonprofit corporation that supervised and exercised control over Plaintiff’s abuser, Mackey. (SAC, ¶¶ 6-7.) West Congregation (collectively with Watchtower, “Church Defendants”) is a nonprofit California corporation, owned, controlled, directed, and operated by Watchtower, which included the church, West Congregation, that Plaintiff attended and the property where the unlawful acts of childhood sexual assault occurred. (*Id.* at ¶ 11.)

Watchtower was responsible for finalizing the appointments of Elders and Ministerial Servants, including Mackey, from its headquarters in New York. (SAC, ¶¶ 7-8, 15.) The managing agents directing and setting the corporate policies of the Church Defendants was a group of individuals known as the “The Governing Body.” (*Id.* at ¶ 10(a).) The Governing Body established, approved, and disseminated all the

¹ The Third Cause of Action for Negligence is the *only* cause of action brought against Defendant Watchtower in the SAC.

² J.C. is not Plaintiff’s actual name, but a fictitious name used to protect her privacy. (See SAC, ¶ 5.)

administrative policies, procedures, and programs followed by all congregations on the subject of prevention and administrative response to acts of childhood sexual abuse committed by or upon its members, including childhood sexual abuse arising from or out of the activities of members of West Congregation. (*Id.* at ¶ 10(c).)

In or around 1989, Plaintiff was sexually assaulted and/or sexually abused, and molested by Church Defendants' employee and/or agent Mackey. (SAC, ¶ 27.) Mackey sexually assaulted and/or abused Plaintiff on multiple occasions by use of the trust, position, and authority he held as a fellow member, agent, and leader of West Congregation. (*Id.* at ¶ 28.) Plaintiff would attend church sponsored events at her home, as mandated by Defendants. (*Id.* at ¶ 29.) Mackey would attend these church-sponsored events and singled Plaintiff out with the intention of grooming her for inappropriate and eventual sexual assault and abuse. (*Id.* at ¶ 30.) During these church-sponsored events, Mackey would place a blanket over himself and Plaintiff and sexually abuse and/or assault her when she was only seven years old. (*Id.* at ¶ 31.) Watchtower's policies separated parents, including Plaintiff's parents, from the youth attending these events and classes, even when the events occurred in the parents' home. (*Id.* at ¶¶ 32, 33.) Mackey's sexual assault, abuse, and molestation was "done in full view of Church Defendants' Elders, ministerial servants, and congregation members." (*Id.* at ¶ 34.)

Plaintiff was sexually assaulted, abused, and molested countless times by Mackey at Church Defendants' events over a span of a few months in 1989. (SAC, ¶ 35.) Mackey also sexually assaulted, abused, and/or molested Plaintiff's minor brother and cousin prior to abusing Plaintiff. (*Id.* at ¶ 36.) Plaintiff's parents reported the sexual assault, abuse, and molestation of Plaintiff by Mackey to Church Defendants' Elders at West Congregation. (*Id.* at ¶ 37.) However, Church Defendants' Elders attempted to conceal and cover up Mackey's sexual assaults by instructing Plaintiff's parents not to report the assault to the police, but failed to take any action against Mackey. (*Ibid.*) Plaintiff's parents then reported the assault to the police, and the Church Defendants still failed to take action against Mackey. (*Id.* at ¶ 38.)

Before, during, and after Mackey's sexual assault and/or sexual abuse, and molestation of Plaintiff, Church Defendants, "through their agents and Elders knew that Mackey's conduct and relationship with minor children, including Plaintiff, was inappropriate, unlawful, wrongful, and/or otherwise created a risk of childhood sexual assault." (SAC, ¶ 39.) Plaintiff is informed and believes that Church Defendants maintained, and still maintain, a database from Watchtower's congregation, including West Congregation, regarding Mackey's prior abuse of Plaintiff, but their policies forbid dissemination of prior reports. (*Id.* at ¶ 40.) Elders at West Congregation confirmed that Mackey inappropriately touched, sexually assaulted and/or sexually abused and molested other children, including Plaintiff, but purposely failed to: notify or warn members and parents of the risk of sexual abuse by Mackey; limit or supervise Mackey's access to children; and notify law enforcement. (*Id.* at ¶¶ 42-44.) As a result, Mackey was able to continue his sexual assaults and/or abuse and molestation of Plaintiff and remained in good standing at West Congregation. (*Id.* at ¶¶ 45, 47(a).)

On July 12, 2024, Plaintiff filed the operative SAC against Defendants, asserting the following causes of action:

- 1) Sexual Assault of a Minor [against Mackey];
- 2) Intentional Infliction of Emotional Distress [against Mackey];
- 3) Negligent Hiring, Supervision, and Retention [against Defendants];
- 4) Negligence [against Does 4 through 60].

On January 26, 2026, Watchtower filed this Motion for Summary Judgment of the SAC's Third Cause of Action.³ No opposition was filed in response to the Motion.

On August 21, 2026, Watchtower filed a reply indicating that no opposition was filed by Plaintiff. As a result, the Court treats the Motion as unopposed declines to grant on that basis alone. In accordance with the strong policy of California law to decide matters on their merits, the Court will analyze whether Watchtower has met its burden for summary judgment.

Legal Standard on Motion for Summary Judgment

A motion for summary judgment “shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.” (Code Civ. Proc., § 437c, subd. (c).)

The “party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact[.]” (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850 (*Aguilar*).) “A prima facie showing is one that is sufficient to support the position of the party in question.” (*Id.* at p. 851.)

If the moving party makes the necessary initial showing, the burden of production shifts to the opposing party to make a prima facie showing of the existence of a triable issue of material fact. (*Aguilar, supra*, 25 Cal.4th at p. 850.) “There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof.” (*Ibid.*) “[I]f the court concludes that the [opposing party’s] evidence or inferences raise a triable issue of material fact, it must conclude its consideration and deny the [moving party’s] motion.” (*Id.* at p. 856.)

Throughout the process, the trial court “must consider all of the evidence and all of the inferences reasonably drawn therefrom[.]” (*Aguilar, supra*, 25 Cal.4th at p. 844 [internal quotations omitted].) The moving party’s evidence is strictly construed, while

³ As noted above, this Third Cause of Action is the *only* claim brought against Watchtower.

the opposing party's evidence is liberally construed. (*Id.* at p. 843.)

Analysis of the Motion for Summary Judgment

I. Watchtower has met its burden of showing that there is no triable issue of material fact that Watchtower owed any duty to Plaintiff.

The Third Cause of Action makes the following allegations against Watchtower:

- 1) a special relationship existed between Watchtower and Mackey because he was an agent of Watchtower and Watchtower had the ability to control his conduct (SAC, ¶ 70);
- 2) Watchtower was negligent in its supervision of Mackey and failed to warn Plaintiff of the risk that Mackey would sexually assault children (SAC, ¶ 71); and
- 3) Watchtower failed to exercise reasonable care and failed to notify law enforcement of abuse (SAC, ¶¶ 71-72).

Thus, the claim depends upon the existence of a special relationship between Watchtower and Mackey or Watchtower and Plaintiff. (E.g., *Conti v. Watchtower Bible & Tract Society of New York, Inc.* (2015) 235 Cal.App.4th 1214, 1227 [“where the issue is whether the defendant had a duty to protect the plaintiff from harm caused by a third party, the absence of a special relationship is dispositive”].)

“A special relationship between the defendant and the victim is one that gives the victim a right to expect protection from the defendant, while a special relationship between the defendant and the dangerous third party is one that entails an ability to control the third party's conduct. . . . The common features of a special relationship include an aspect of dependency in which one party relies to some degree on the other for protection and the other party has superior control over the means of protection. . . . California courts have frequently recognized special relationships between . . . a church and minor members engaged in church-sponsored field service[.]” (*Doe v. Roman Catholic Archbishop of Los Angeles* (2021) 70 Cal.App.5th 657, 670-671 [internal citations and quotations omitted].)

Watchtower argues it is entitled to summary judgment on the Third Cause of Action because it was *not* in a special relationship with either Mackey or Plaintiff and therefore owed no duty to Plaintiff. (Motion, p. 9:20-21.) In support, Watchtower proffers the Declaration of Joel Taylor (“Taylor”). Taylor states he has personal knowledge of the facts and is the Associate General Counsel of Watchtower and an elder of Jehovah's Witnesses. (Taylor Decl., ¶¶ 1-3.) Taylor states that neither Plaintiff nor Mackey were members of Watchtower. (UMFs 3-4 [Taylor Decl., ¶ 5].) Taylor further asserts that on the dates of the sexual assault, Watchtower had no local offices in California, did not own any Kingdom Halls or congregations of Jehovah's Witnesses, and did not supervise the day-to-day activities of local congregations of Jehovah's Witnesses in California. (UMF 5 [Taylor Decl., ¶ 6]; see also Taylor Decl., ¶¶ 11, 13.) Further, Taylor contends that West

Congregation is locally operated and overseen by elders and Watchtower has no elders of its own and never had elders or parishioners. (UMF 13 [Taylor Decl., ¶ 7].) Finally, Taylor states that after a diligent search, Watchtower has no record of Mackey ever being an employee, volunteer, or agent of Watchtower. (Taylor Decl., ¶ 18.)

Based on the foregoing, Watchtower has proffered sufficient evidence to show that no special relationship existed between it and Plaintiff or Mackey and as a result, Watchtower did not owe a duty of care to Plaintiff. (See *C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, 877 [“Absent such a special relationship, there can be no individual liability to third parties for negligent hiring, retention, or supervision of a fellow employee.”]; *Kesner v. Superior Court* (2016) 1 Cal.5th 1132, 1149-1150 [“The existence of a duty depends upon the foreseeability of the risk . . .”].)

Accordingly, Watchtower meets its burden of establishing there is no triable issue of material fact as to duty. As noted above, Plaintiff has not opposed the Motion. As such, Watchtower’s Motion for summary judgment is **GRANTED** in its entirety.⁴

Conclusion & Order

Defendant Watchtower Bible and Tract Society of New York, Inc.’s Motion for Summary Judgment under Code of Civil Procedure Section 437c is **GRANTED** in favor of Watchtower Bible and Tract Society of New York, Inc., and against Plaintiff J.C.

SO ORDERED.

Date: September 2, 2026

Vincent I. Parrett
Judge of the Superior Court of California,
County of Santa Clara

⁴ Given the Court’s ruling Granting Summary Judgment in favor of Watchtower, the Court need not and does not reach any remaining arguments raised by Watchtower.

Line 5

Case Name: *Shan Allen Laliberte, et al. v. F.S. Trucking Company, et al.*

Case No.: 25CV472081

See ORDER above. (At the request of the moving party, this Motion is OFF CALENDAR.)